

# **TENTATIVE RULING(S) FOR August 12, 2026**

## **Department S37 – Judge Winston Keh**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2328644**

**Martinez vs Taylor**

---

### **TENTATIVE RULING(S):**

Before the Court is Plaintiff's motions seeking to quash third-party subpoenas for business records. Defendant Burroughs opposes and Plaintiff replies.

#### Statement of Law

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an

opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (Code Civ. Proc., §1987.1, subd. (b).)

No meet and confer effort is required to bring a motion to quash. (Code Civ. Proc., §1987.1.)

Sanctions against the losing party are discretionary, pursuant to Section 1987.2, if the court finds the motion was made or opposed in bad faith or without substantial justification, or if one or more of the requirements of the subpoena was oppressive. (Code Civ. Proc., §1987.2.) When a trial court exercises its discretion to issue discovery sanctions, the court must delineate the specific acts upon which the sanctions are awarded. (*First City Properties, Inc. v. MacAdam* (1996) 49 Cal.App.4th 507, 515.)

### Analysis

Defendant Burroughs' subpoenas to West Point Medical Center and Yalina Palomino, MSW, LCSW seeks all medical and billing records, broadly defined, regarding Plaintiff's mental health from January 1, 2018 to the present. Defendant's subpoena to Jin M. Kim, M.D., seeks similar records as well as medical and radiology records relating to Plaintiff's torn meniscus from March 1, 2023 through June 30, 2023. Plaintiff moves to quash on grounds (a) the subpoenas violate Plaintiff's constitutional privacy rights; and (b) the requests for billing records are not reasonably calculated to lead to admissible evidence.

Discovery is relevant if admissible or likely to lead to admissible evidence. (Code Civ. Proc., §2017.010.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement." (*Glenfed Dev. Corp. v. Superior Court (National Union Fire Insurance Company of Pittsburgh, PA)* (1997) 53 Cal.App.4th 1113, 1117; *Norton v. Superior Court (Ein)* (1994) 24 Cal.App.4th 1750, 1760.)

Individuals have a constitutional right of privacy that protects their information. (*Williams v. Superior Court (Marshall's of CA, LLC)* (2017) 3 Cal.5th 531, 552.) A privacy interest is invaded if there is “a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Ibid.*; *Hill v. National Collegiate Athletic Assn* (1994) 7 Cal.4th 1, 35-37.)

When discovery seeks information implicating the constitutional right of privacy, the standard of review will depend on the seriousness of the invasion, i.e., a compelling interest applies if the privacy invasion concerns an interest fundamental to personal autonomy but otherwise a balancing test based on the strength of the privacy interest, the seriousness of the invasion, and the availability of alternatives and protective measures. (*Williams, supra*, 3 Cal.5th at p. 552; *Lewis v. Superior Court (Medical Board of California)* (2017) 3 Cal.5th 561, 572.)

Where a plaintiff alleges a defendant caused mental and emotional ailments, the existence and extent of such mental injuries is “indubitably in dispute.” (*Vinson v. Superior Court (Peralta Community College District)* (1987) 43 Cal.3d 833, 840.) “In addition, by asserting a causal link between her mental distress and defendants' conduct, plaintiff implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress.” (*Ibid.*) Where a plaintiff alleges a defendant caused mental and emotional ailments, the existence and extent of such mental injuries is “indubitably in dispute.” (*Ibid.*)

“[A] patient has a privacy interest in a doctor's medical records pertaining to the patient's physical or mental condition.” (*Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853, disapproved on other grounds in *Williams, supra*, 3 Cal.5th 531.) The patient-physician privilege allows a patient to refuse to disclose a confidential communication between patient and physician, but there is no privilege where the patient has filed an action for personal injuries as to information which relates to the claimed injuries. (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313, citing Evid. Code, §§994, 996.)

In opposition, Defendant Burroughs correctly notes that the complaint repeatedly alleges Plaintiff suffered emotional and physical injuries as a result of Defendants' misconduct, including high blood pressure (§23); mental and physical pain, anguish, loss of sleep, severe stress, and

anxiety (§§50); loss of appetite and depression-like symptoms (§§70); and decline in health, embarrassment, humiliation, and loss of self-esteem (§§106).

Defendant also provides excerpts from Plaintiff's testimony in a workers' compensation appeals board matter wherein Plaintiff testified the stress from working at Burroughs created problems with his neck, back, leg, hip, and teeth. (Davis Decl., Exh. B, 34:16-23, 36:24-38:3.) Plaintiff first experienced neck problems five years prior to his October 2023 deposition due to stress. (*Id.*, 38:4-7.) He had also experienced neck and arm numbing during the same period, also stress related. (*Id.*, 41:8-14.)

Plaintiff further testified in the workers' compensation matter that he had a prior motor vehicle accident involving his neck and back in 2021. (Davis Decl., Exh. C, 113:22-114:14.) Plaintiff further testified he made a full recovery from the accident, but seemed to acknowledge being seen for issues from the accident as late as April 27, 2022. (*Id.*, 130:24-131:9, 133:22-135:11.) Defendant contends Plaintiff made a workers' compensation claim on May 4, 2022, complaining of neck issues caused by work stress, but the evidence behind this is ambiguous.

Plaintiff further testified he weighs 260 pounds (Davis Decl., Exh. C, 111:23-24) and was diagnosed with hypertension in 2023 but does not take medication for it (Davis Decl., Exh. B, 70:2-13). Plaintiff was diagnosed with sleep apnea within the last five years before his 2023 deposition. (*Id.*, 71:17-23.) Plaintiff had insomnia from 2005 through 2008. (Davis Decl., Exh. C, 155:4-156:18.) Plaintiff testified he started taking medication for diabetes two weeks before the deposition, although his physician had prescribed it for him a year and a half or two years before that. (Davis Decl., Exh. B, 69:6-24.)

Defendant Burroughs asserts the subject subpoena is justified because Plaintiff has claimed both mental and physical injuries in his complaint. In the reply, Plaintiff cites to two responses to form interrogatories (which are not provided to the Court or authenticated) in which he somewhat limits or perhaps even disavows claims of physical injury while maintaining his claims of emotional injury. Plaintiff further argues Defendant Burroughs is trying to use testimony from the workers' compensation case to get access to material that is not relevant to this case.

Plaintiff certainly has a privacy interest in the material sought, but it is overcome because Plaintiff expressly alleges mental and physical injuries resulting from Defendants' misconduct. Plaintiff is entitled to explore alternate sources of stress, of which Plaintiff testified to several in the workers' compensation appeal. Going back to 2018 is reasonable given Plaintiff's testimony that he suffered physical ailments over much of his body as a result of his stress going back that far. The request for billing records, while perhaps more questionable, is also reasonably calculated to lead to admissible evidence. Accordingly, the Court denies all three motions to quash.

Plaintiff's papers suggest he may either has agreed or is willing to reduce the scope of his claims in some respects. This does not alter the analysis on the motions themselves, because Plaintiff's complaint still alleges mental and physical injury. However, the parties have the option of meeting and conferring on a stipulation to reduce the scope of the litigation or damages claimed.

#### RULING

For all the reasons stated above, the motions are DENIED.

# **TENTATIVE RULING(S) FOR August 12, 2026**

## **Department S37 – Judge Winston Keh**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2518395**

**Hemenway vs City of Fontana**

---

Tentative Ruling:

Before the Court is Plaintiff Robert Hemenway's motion to compel further responses to discovery. Although the motion appears on the Court's docket as three separate motions, it appears only a single motion was filed addressing request for admission, interrogatories, and requests for production of documents. Defendant opposes. No reply has been filed as of 11:00 a.m. on 8/10/26.

### **Analysis**

This motion fails for a myriad of reasons. First, there is no supporting meet and confer declaration (or any declaration)—although the opposition papers indicate there were some unspecified meet and confer efforts. (See opposition, 2:20-21, 5:21-22.) Second, the separate

statement is procedurally defective because it fails to state the state the text of each response in violation of California Rules of Court, rule 3.1345(c)(2). Instead, the separate statement summarizes the responses by stating “Defendant objected on the grounds of vagueness, overbreadth, and relevance, and produced limited documents” or “Defendant provided a vague and incomplete response.” Substantively, Defendant provides supplemental responses served March 26, 2026 (Anderson Decl., ¶¶6; Exhs. G-I). Defendant contends these are not addressed in the moving papers, although this is difficult to discern in light of Plaintiff’s deficient separate statement. Nevertheless, the Court denies Plaintiff’s motion to compel further responses.

**Sanctions.** Both sides request sanctions. The Court denies Plaintiff’s request for sanctions since Defendant provided supplemental responses making the imposition of sanctions unjust. Further, Plaintiff is the losing party on his own motion.

Defendant requests \$2,500 in sanctions. However, defense attorney Kayleigh A. Anderson’s declaration does not state her rate or how many hours were incurred, instead contending her office has expended “several” hours so far and she will need an additional two hours to prepare for and attend the hearing. (Anderson Decl., ¶¶9.) This motion is so deficient that opposing it should have been very simple. Under the circumstances, the Court grants Defendant’s request for sanctions in the amount of \$900—inclusive of three hours of attorney time at \$300 per hour.

## **RULING**

For all the reasons stated above, the Court rules as follows:

1. Denies Plaintiff’s motion to compel further responses to discovery;
2. Denies Plaintiff’s request for sanctions; and
3. Grants Defendant’s request for sanctions in the amount of \$900, payable in 7 business days from the date of this ruling.

# **TENTATIVE RULING(S) FOR August 12, 2026**

## **Department S37 – Judge Winston Keh**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2432795**

**State v. Amazon**

---

### **Tentative Ruling:**

This is an action for Civil Penalties under the Private Attorney General Act (PAGA). On October 29, 2024, Plaintiff State of California ex rel. Maria Coronado, as Private Attorney General (Plaintiff or Coronado) filed her PAGA Complaint alleging the following two causes of action against defendant Amazon.Com Services, LLC (Defendant or Amazon): (1) failure to establish, implement, and maintain an effective injury and illness prevention program; and (2) permitting unsafe work and failure to provide safe workplace, practices, and processes.

The case is at issue.

Plaintiff alleges that she is not suing in her individual capacity. Rather, in accordance with *Balderas v. Fresh Start Harvesting, Inc.* (2024) 101 Cal.App.5th 533, Plaintiff is proceeding



herein solely under the PAGA on behalf of approximately 10,000 similarly situated current and former aggrieved employees employed by Amazon (collectively Employees) throughout the State of California between September 6, 2023, and the conclusion of this action (Statutory Period). (Compl. ¶ 2.)

Plaintiff further alleges that she this action for violations of occupational health-and-safety provisions of the California Labor Code. Amazon subjected Employees to these violations, some of which caused injury while some of which did not necessarily cause injury. Like all PAGA actions, this action does not seek compensation for any injury (*Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 89); the PAGA provides for civil penalties, for violations of the California Labor Code. (See Compl. ¶ 4.)

Plaintiff also alleges that she worked for Amazon from 2022 until 2024 in various positions at various locations in California. While Plaintiff worked at Amazon, she and the Employees were not properly trained for their work at Amazon, particularly when Amazon assigned Employees to a new job assignment. Amazon also failed to provide additional safety training as required by law whenever an employee was placed in a new job assignment. (Compl. ¶¶ 16-18.)

Plaintiff further alleges that she expressed her concerns to supervisors about safety issues, but there was no response, and she was injured on more than one occasion. First, she was struck by a pole near her eye and her supervisor laughed and instructed her to stay quiet, but she made a formal complaint. Then in 2024, she injured her right hand during her shift and Amazon provided ice and Tylenol, and sent her back to work. (Compl. ¶¶ 19-21.)

Plaintiff also alleges that there was no adequate investigation regarding the cause of Employees' injuries. Nor was there an adequate analysis by Amazon regarding the availability of preventative measures that could have mitigated the risks leading to Employees' injuries. (Compl. ¶ 22.)

Before the Court is Amazon's motion for summary judgment, or in the alternative, summary adjudication as to Plaintiff's causes of action. Plaintiff opposes and Amazon replies. The issues have been fully briefed.

Amazon's Request for Judicial Notice:

Amazon request the Court to take judicial notice of the following items in support of its MSJ/MSA:

- (1) Senate Judiciary Committee, April 29, 2003 Hearing on Senate Bill No. 796 (2003-2004 Reg. Sess.), as amended April 22, 2003. (RJN, Exh. 1.)
- (2) Excerpts from the Governor's File for Senate Bill No. 796 (2003-2004 Reg. Sess.). (RJN, Exh. 2.)
- (3) Senate Rules Committee, Office of Senate Floor Analyses July 28, 2004, Senate Bill No. 1809 (2003-2004 Reg. Sess.), as amended July 27, 2004. (RJN, Exh. 3.)
- (4) Senate Floor Analysis, Senate Bill No. 1809 (2003-2004 Reg. Sess.), as amended July 27, 2004. (RJN, Exh. 4.)
- (5) Assembly Committee on Judiciary, June 24, 2004 Hearing on Senate Bill No. 1809 (2003-2004 Reg. Sess.), as amended May 26, 2004. (RJN, Exh. 5.)
- (6) Senate Rules Committee, Office of Senate Floor Analyses July 29, 2004, Senate Bill No. 1809 (2003-2004 Reg. Sess.) as amended July 27, 2004. (RJN, Exh. 6.)
- (7) Assembly Committee on Appropriations, July 28, 2004 Hearing on Senate Bill No. 1809 (2003-2004 Reg. Sess.), as amended July 27, 2004. (RJN, Exh. 7.)
- (8) Assembly Committee on Appropriations Analysis, Senate Bill No. 1809 (2003-2004 Reg. Sess.), as amended July 27, 2004. (RJN, Exh. 8.)
- (9) Senate Bill No. 1809 (2003-2004 Reg. Sess.), Stats. 2004, ch. 221, approved Aug. 11, 2004. (RJN, Exh. 9.)

- (10) Division of Occupational Safety and Health (Cal/OSHA), Policy and Procedures Manual, Section P&P C-45A (rev. Apr. 1, 2003), available at <https://www.dir.ca.gov/DOSHPol/P&PC-45A.pdf>. (RJN, Exh. 10.)
- (11) Order Denying Plaintiff's Application for Preliminary Injunction in *Brent v. AmazonFresh LLC*, San Francisco Superior Court Case No. CGC-20-584828, dated July 27, 2020. (RJN, Exh. 11.)
- (12) Order Sustaining Defendants' Demurrers in *Brent v. AmazonFresh LLC*, San Francisco Superior Court Case No. CGC-20-584828, dated September 15, 2020. (RJN, Exh. 12.)
- (13) Labor and Workforce Development Agency, Department of Industrial Relations, Express Terms of the Proposed Regulatory Text: Regulations Implementing the Labor Code Private Attorneys General Act of 2004 (Feb. 6, 2026), available at: [https://www.labor.ca.gov/wp-content/uploads/sites/338/2026/02/2026-2-6-Express-Terms-of-Prop-Rulemaking\\_LWDA\\_PAGA-Z2026-0121-03.pdf](https://www.labor.ca.gov/wp-content/uploads/sites/338/2026/02/2026-2-6-Express-Terms-of-Prop-Rulemaking_LWDA_PAGA-Z2026-0121-03.pdf). (RJN, Exh. 13.)

The Court *Grants* Amazon's request for judicial notice as to Exhibits 1-10 and 13 pursuant to Evidence Code section 452, subdivisions (b) and (c); *Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31-32; *Rodas v. Spiegel* (2001) 87 Cal.App.4th 513, 518; and *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 929.

The Court *Denies* Amazon's request for judicial notice as to Exhibits 11-12. Decisions from other superior courts are not citable authority and are not binding precedent on this court. (*Santa Ana Hospital Med. Center v. Belshi* (1997) 56 Cal.App.4th 819, 831.)

Relevant Facts:

Amazon's Sort Center known as LGB5 (Amazon LGB5) is located at 555 E. Orange Show Rd., in San Bernardino, California. (UF Nos. 1 & 14 - undisputed.) Amazon's Cross-Dock Facility known as SBD3 (Amazon SBD3) is located at 5990 Cajon Blvd., in San Bernardino, California. (UF Nos. 2 & 15 - undisputed.)

Plaintiff Coronado worked as a package sorter at Amazon LGB5 from around August to October 2023. (UF Nos. 3 & 16 - undisputed.) Plaintiff worked as a pallet builder for a total of six shifts at Amazon SBD3, ending around January 2024. (UF Nos. 4 & 17 - undisputed.)

Cal/OSHA sent a Document Request to Amazon SBD3 dated May 24, 2023. (UF Nos. 5 & 18 - undisputed.) On June 7, 2023, Amazon SBD3 responded to Cal/OSHA's Document Request, providing a copy of Amazon SBD3's Injury and Illness Prevention Program (IIPP), and other information. (UF Nos. 6 & 19 - undisputed.) Following Amazon's June 7, 2023 response, Cal/OSHA did not issue a citation to Amazon. (UF Nos. 7 & 20 - undisputed.)

Cal/OSHA sent Amazon LGB5 a Cal/OSHA Inspection Document Request dated February 23, 2024. (UF Nos. 8 & 21 - disputed.) On March 13, 2024, Amazon LGB5 responded to Cal/OSHA's Inspection Document Request, providing a copy of Amazon LGB5's IIPP, and other information. (UF Nos. 9 & 22 - undisputed.) Following Amazon's March 13, 2024 response, Cal/OSHA did not issue a citation to Amazon. (UF Nos. 10 & 23 - undisputed.)

On April 3, 2025, Amazon SBD3 received a letter from Cal/OSHA dated March 20, 2024, concerning Complaint No. 2142821. (UF Nos. 11 & 24 - undisputed.) On April 16, 2025, Amazon SBD3 responded to Cal/OSHA's letter regarding Complaint No. 2142821, providing a copy of SBD3's IIPP, and other information. (UF Nos. 12 & 25 - undisputed.) Following Amazon's April 16, 2025 response, Cal/OSHA did not issue a citation to Amazon. (UF Nos. 13 & 26 - undisputed.)

#### Analysis:

Amazon's MSJ/MSA is made on the grounds that (1) the first cause of action fails as a matter of law on the ground that Plaintiff's claims are nonjusticiable because they are barred by the doctrines of judicial abstention and primary jurisdiction, such that the Court should defer to the specialized expertise, judgment, and prior involvement of Cal/OSHA on the issue of the

adequacy of Amazon's IPPs; and (2) the second cause of action fails as a matter of law on the ground that Plaintiff's claims are nonjusticiable because they are barred by the doctrines of judicial abstention and primary jurisdiction, such that the Court should defer to the specialized expertise, judgment, and prior involvement of Cal/OSHA on the issue of Amazon's compliance with its obligation to provide a safe and healthful workplace.

It is noted that in this case there is not an issue of disputed facts, there is an issue of application of law to the facts.

*1. Primary Jurisdiction Argument:*

The doctrine of primary jurisdiction is related to the doctrine of exhaustion of administrative remedies in that both involve the question whether an administrative agency should first hear (or rehear) a dispute prior to it being presented to a court. (*Farmers Ins. Exchange v. Superior Court* (1992) 2 Cal.4th 377, 390 (*Farmers Ins. Exchange*)). The doctrine of exhaustion of administrative remedies is applied where an administrative agency must be the first body to consider a matter; the doctrine of primary jurisdiction applies where a claim can originally be addressed in a court, but would be better addressed first by an administrative body. (*Ibid.*) The latter doctrine does not preclude judicial consideration of the case, but rather suspends judicial action pending the administrative agency's views. (*Ibid.*; *Wise v. Pacific Gas & Electric Co.* (1999) 77 Cal. App. 4th 287, 295-296.) The doctrine of primary jurisdiction doctrine advances two related policies: it enhances court decision making and efficiency by allowing courts to take advantage of administrative expertise, and it helps assure uniform application of regulatory laws. (*Farmers Ins. Exchange, supra*, 2 Cal.4th at p. 391.)

Exhaustion of administrative remedies under the PAGA is not an element of any of Plaintiff's claims; rather, it is an affirmative defense which Amazon bears the burden of proof. (*Gunther v. Alaska Airlines, Inc.* (2021) 72 Cal.App.5th 334, 351.) Unlike Amazon's prior demurrer, the present motion does not assert the defense of failure to exhaust administrative remedies. (See Mtn, at p. 10 fn. 6 ["administrative exhaustion is not the subject of this motion"].) Because Amazon frames its challenge in the context of administrative review, however, it is nonetheless helpful to review PAGA's statutory scheme.

PAGA includes three provisions setting forth different exhaustion procedures, depending on the type of Labor Code violation alleged:

- (1) Labor Code section 2699.3, subdivision (a);
- (2) Labor Code section 2699.3, subdivision (b); and
- (3) Labor Code section 2699.3, subdivision (c).

A. Labor Code section 2699.3, subdivision (a): Labor Code section 2699.3, subdivision (a)'s exhaustion procedure applies to Labor Code provisions specifically listed in Section 2699.5. It is undisputed that this action does not involve a specified statutory provision and is therefore not governed by the exhaustion procedure set forth at Labor Code section 2699.3, subdivision (a).

B. Labor Code section 2699.3, subdivision (b): Labor Code section 2699.3, subdivision (b)'s exhaustion procedure applies to health-and-safety laws contained in Division 5 of the Labor Code (Lab. Code, §§ 6300-9104). This action alleges violations of Division 5; thus, this action is governed initially by the exhaustion procedure set forth at Labor Code section 2699.3, subdivision (b), which under certain circumstances present here also incorporates the exhaustion procedure set forth in the next subdivision of the statute.

C. Labor Code section 2699.3, subdivision (c): Labor Code section 2699.3, subdivision (c)'s exhaustion procedure applies in two scenarios: (i.) If Cal/OSHA does not investigate a Labor Code section 2699.3, subdivision (b) violation within "three working days after receipt of a complaint charging a serious violation," or within "14 calendar days after receipt of a complaint charging a nonserious violation" as required by Section 6309(a), and (ii.) All other Labor Code violations not listed in Section 2699.5 and not contained within Division 5 of the Labor Code.

As relevant to this case, the essence of Labor Code section 2699.3, subdivision (c) is the 33-day period in which the employer may file a "cure" claim with the government. Plaintiff recognizes that Labor Code section 2699.3, subdivision (c) was amended effective October 1, 2024, to alter the time period from a 33-day period to a 60-day period. (Lab. Code, §§ 2699.3. subd. (c)(1)(d) & 2699.3, subd. (g).) Because both of Plaintiff's PAGA notices predated the amendment, however, the Court should look to the language of the statute then-in effect in calculating the procedural requirements and deadlines applicable to Plaintiff's PAGA notices. (*Beeman v. Burling* (1990)

216 Cal.App.3d 1586, 1607 [discussing prospective application of rules regarding “modes of procedure to be followed in future proceedings”].)

The statute in effect at the time of Plaintiff’s PAGA notices provided, “The employer may cure the alleged violation within 33 calendar days of the postmark date of the [PAGA] notice sent by the aggrieved employee or representative. The employer shall give written notice within that period of time by certified mail to the aggrieved employee or representative and by online filing with the agency.... If the alleged violation is not cured within the 33-day period, the employee may commence a civil action pursuant to Section 2699.” (Lab. Code, § 2699.3, subd. (c)(2)(A).)

Plaintiff relies on the District Court’s reasoning in *Sprewell v. Federal Express Corporation* (C.D. Cal., May 19, 2021) 2021 WL 4706703 (*Sprewell*). The District Court in *Sprewell* recognized that where, as here, Cal/OSHA fails to investigate within a maximum of 14 days, Labor Code section 2699.3, subdivision (b), drops out of the picture and the matter is governed exclusively by Labor Code section 2699.3, subdivision (c)’s exhaustion procedure.

Here, Plaintiff served the first PAGA notice on Amazon and Cal/OSHA on September 6, 2024, and there was no inspection or investigation within the time provided by law (i.e., 3-to-14 days). (Compl., Exh. 2; Compl. ¶ 6.) Accordingly, Labor Code section 2699.3, subdivision (c) applies. Amazon does not dispute that Plaintiff’s second notice appropriately waited the applicable 33-day period before commencing this action. Plaintiff served the second PAGA notice on Amazon and the LWDA more than 14 days later on September 24, 2024 (i.e., 18 days later). (Compl. Exh. 2.)

And with respect to those violations that were curable, Plaintiff specifically alleged that “Defendant failed to invoke its option to cure the violations within the time provided under PAGA” (i.e., 33 days). (Compl. ¶ 6.) Plaintiff filed this action more than 33 days later on October 29, 2024 (i.e., 35 days later).

This is what happened in *Sprewell*. In that case, the plaintiff alleged that Cal/OSHA “failed to comply with section 6309’s timeline for investigating complaints.... Cal/OSHA missed the 3- or 14-day deadline set forth in Labor Code section 6309, subdivision (a). Because the Division [Cal/OSHA] failed to meet the 3- and 14-day deadlines in section 6309, the provisions of

subdivision (c) apply to Defendant's alleged violations." (*Sprewell*, *supra*, 2021 WL 4706703 at \*5 [citations omitted, citing Lab. Code, § 2699.3, subd. (b)(2)(B)].) In *Sprewell*, the court discussed that "Plaintiff further alleges that more than 33 calendar days after Plaintiff's second notice, Amazon failed to cure the violations or provide any notice of cure within the requisite time period." (*Id.*) "Although no civil action can be filed under Labor Code section 2699.3, subdivision (c)(3) if the employer asserts that the violation has been cured and the employee fails to contest that assertion within the specified time period, the statute unambiguously provides that '[i]f the alleged violation is not cured within the 33-day period, the employee may commence a civil action pursuant to Section 2699.'" (*Id.*) The *Sprewell* court found "Plaintiff's complaint alleges that this condition for commencing a civil action has been satisfied." (*Id.*) Thus, the federal district court in *Sprewell* denied the defendant's challenge to administrative exhaustion. Likewise, Amazon concedes administrative exhaustion for purposes of its motion.

The PAGA provides that "[n]o action may be brought under this section by an aggrieved employee if the agency or any of its departments, divisions, commissions, boards, agencies, or employees, on the same facts and theories, cites a person within the time frames set forth in Section 2699.3 for a violation of the same section or sections of the Labor Code under which the aggrieved employee is attempting to recover a civil penalty on behalf of the employee or others or initiates a proceeding pursuant to Section 98.3." (Lab. Code, § 2699, subd. (l).) Preclusion of the sort Amazon advocates was contemplated by the Legislature only if the agency either issued a citation or filed an action in court based on the "same facts and theories" asserted in the PAGA claim. There is no evidence or facts presented that show that either of these things occurred. Therefore, the Court *denies* Amazon's MSJ/MSA based upon the doctrine of primary jurisdiction, as Amazon has failed to meet its initial burden of showing this doctrine applies to this action.

## *2. Judicial Abstention Argument:*

"Judicial abstention is appropriate when granting the requested relief would require a trial court to assume the functions of an administrative agency, or to interfere with the functions of an administrative agency." (*Alvarado v. Selma Convalescent Hospital* (2007) 153 Cal.App.4th 1292, 1298 (*Alvarado*)). "As a general matter, a trial court may abstain from adjudicating a suit that



seeks equitable remedies if [1] ‘granting the requested relief would require a trial court to assume the functions of an administrative agency, or [2] to interfere with the functions of an administration agency,’” or [3] “where ‘granting injunctive relief would be unnecessarily burdensome for the trial court to monitor and enforce given the availability of more effective means of redress.’” (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181Cal.App.4th 471, 496; see also, e.g., *Alvarado, supra*, 153Cal.App.4th at p. 1296.)

The cases cited by Amazon do not involve a statutory scheme like the PAGA, which deputizes private plaintiffs to file actions for violations previously prosecuted exclusively by a government agency. For example, in *Samura v. Kaiser Foundation Health Plan, Inc.* (1993) 17 Cal.App.4th 1284 (*Samura*), cited by Amazon, the Court addressed violations of the Knox-Keene Act, prosecution of which was “entrusted exclusively to the Department of Corporations, preempting even the common law powers of the Attorney General.” (*Samura, supra*, 17 Cal.App.4th at p. 1299.) The same cannot be said here; the PAGA expressly recognizes that Division 5 of the Labor Code may be enforced by Cal/OSHA via agency citations or by employees via the PAGA. Amazon argues that the Court should not interfere with the domain of Cal/OSHA because the Court is not an expert in health-and-safety law. (Mtn. at p. 21.) Amazon’s argument is not persuasive. (See *People v. Savala* (1981) 116 Cal.App.3d 41, 56 [it is the authority of the judicial branch “to say what the law is”].) It is for the courts, including this Court, to define and apply the law, as it regularly does in disputes involving employees and their employers in a wide variety of contexts.

Despite Amazon’s opinion that this Court is “ill-equipped to substitute their judgment” for Cal/OSHA’s judgment (Mtn. at p. 20), when Cal/OSHA does not take action, the PAGA expressly contemplates that the courts will step in. “[W]here the LWDA [which includes Cal/OSHA] has discretion to assess a civil penalty, the courts are to exercise the same discretion, subject to the same limitations and conditions as the LWDA [including Cal/OSHA].” (*LaFace v. Ralphs Grocery Co.* (2022) 75 Cal.App.5th 388, 401.)

PAGA plaintiffs are “proxies for the state, bringing what would otherwise be an administrative regulatory enforcement action on its behalf.” (*Id.*) Because Plaintiff here followed the steps

required to file PAGA claims for matters within Cal/OSHA's purview and Cal/OSHA did not take timely action or investigation of the those claims, Plaintiff is deputized by operation of law to prosecute this action standing in for Cal/OSHA. Amazon's suggestion. To send the matter back to Cal/OSHA when it already did not take action in response to two PAGA claims - makes no sense given PAGA's overarching purpose to deputize employees to prosecute employers when the agency fails to do so. Amazon posits that "the PAGA statute permits a PAGA action for alleged Division 5 violations to proceed under exceedingly narrow circumstances" (Mtn. at p. 15), yet Amazon's logic leaves no realistic room for such prosecution. Amazon's motion largely ignores both the text and intent of the PAGA, which permits suits such as this to enforce the Labor Code when the LWDA (including Cal/OSHA) for whatever reason failed to investigate or act upon Plaintiff's PAGA claims.

Because Amazon's legal and factual arguments do not address Plaintiff's discrete claims or issues asserted therein, Amazon fails to satisfy its initial burden on this motion.

Amazon casts a broad net, stating this action is an attempt to "re-litigate issues that the state itself ... has already investigated and resolved." (Mtn. at p. 18.) This is the crux of Amazon's argument on summary judgment. But the evidence fails to show that Cal/OSHA investigated any of the claims and issues raised in Plaintiff's PAGA claims. There can be no re-litigation of any issue or claim if it was never litigated in the first place.

Amazon's material facts assert that Plaintiff worked for Amazon (UF Nos. 1- 4), Cal/OSHA sent document requests to Amazon in 2023 and 2024 (UF Nos. 5& 8) in connection with Cal/OSHA Inspection Numbers 1672258 & 1733224 (Gunnin Decl. ¶¶ 6-7), Amazon provided a copy of its written IIPP and information to Cal/OSHA in response to these requests (UF Nos. 6 & 9), and Cal/OSHA did not issue a citation to Amazon (UF Nos. 7, 10, & 13). Amazon's evidentiary production fails to connect Cal/OSHA Inspection Numbers 1672258 & 1733224 to any of Plaintiff's claims or any of the issues in this case. Plaintiff is not attempting to prosecute Cal/OSHA Inspection Numbers 1672258 & 1733224, both of which apparently predated Plaintiff's PAGA claims.

The fact that Amazon provided a copy of an IIPP to Cal/OSHA, as the motion asserts, does not address any of Plaintiff's theories of liability in this case. Plaintiff does not claim that Amazon does not have an IIPP. Plaintiff does not claim that an IIPP document is somehow on its face deficient. Rather, the claim is that Amazon failed to establish, implement, and maintain an effective injury and illness prevention program. (Compl. ¶ 29.) The motion recognizes as much, indicating "[t]he first cause of action seeks PAGA penalties for Amazon's alleged failure to maintain an effective IIPP...." (Mtn. at p. 9.) There is no evidence presented that anyone other than Plaintiff has asserted a claim challenging the effectiveness of Amazon's IIPP; nor is there any evidence that Cal/OSHA has investigated or evaluated the effectiveness of Amazon's IIPP as it concerns Plaintiff or any of the specific issues she has raised in this action. (Compl. ¶¶ 16-22.)

Amazon asserts that it communicated with Cal/OSHA between 2024 and 2025 concerning Complaint No. 2142821. (UF Nos. 11-12.) As is the case with Amazon's UF Nos. 5 through 10, it is not apparent what this proposition has to do with Plaintiff's claims. (*Paulek v. Department of Water Resources* (2014) 231 Cal.App.4th 35, 50.) Plaintiff is not attempting to prosecute Complaint No. 2142821. Complaint No. 2142821 asserts that at some point prior to March 20, 2024, and prior to Plaintiff's submission of her PAGA notices and claims, Cal/OSHA received a complaint from another employee, not Plaintiff, that Amazon violated Title 8, Section 3203 of California Code of Regulations (Amazon's Exh. E) somehow by failing to assess hazards in the workplace. Amazon responded that it does assess hazards in the workplace. (Amazon's Exh. F.) Plaintiff's claims are related to not maintaining an effective IIPP and permitting unsafe work and failing to provide a safe workplace, practices, and processes.

Amazon's motion fails to address the claims actually asserted by Plaintiff. Plaintiff alleges that Amazon employees were able to not wear masks during COVID protocols (Compl., Exh. 1, at p. 2.); employees were able to have their ears plugged while working on the floor (Compl., Exh. 1, at p. 2); employees were able to use broken carts to load boxes (Compl., Exh. 1, at p. 2); Amazon failed to respond to an employee's reporting of safety issues (Compl. ¶ 19); an Amazon supervisor caused a pole to strike an employee in the eyebrow (Compl., Exh. 1, at p. 2); in

response to notice of an injury, an Amazon supervisor laughed in the employee's face and told the employee to be quiet (Compl. ¶ 20); Amazon failed to take corrective action against the supervisor (Compl. ¶ 20); when an employee injured one hand, Amazon instructed the employee to get back to work using only the other hand without additional training about how the job could safely be done one-handed (Compl. ¶ 21; Exh. 1 at p.2.); Amazon failed to adequately investigate the cause of Employees' injuries, including Plaintiff's complaints (Compl. ¶ 22); Amazon failed to conduct an adequate analysis regarding the availability of preventative measures that could have mitigated the risks leading to Employees' injuries (Compl. ¶ 22); and Amazon failed to provide safety training when a new job assignment was given to employees (Compl. ¶¶ 17-18). Amazon's evidentiary presentation addresses none of these claims. This deficiency is fatal to Amazon's motion.

Amazon does not present any evidence or contend that Cal/OSHA investigated Plaintiff's PAGA claim or any of the issues asserted therein. Amazon's facts do not address any of Plaintiff's factual theories of liability and, therefore, Amazon has failed to satisfy its burden as the party moving for summary judgment or alternatively summary adjudication.

Therefore, the Court *denies* Amazon's MSJ/MSA based upon the doctrine of judicial abstention, as Amazon has failed to meet its burden of proof showing that this doctrine applies to this action.

## RULING

Based on the foregoing analysis, the Court rules as follows:

- (1) *DENIES* Defendant Amazon's motion for summary judgment, or in the alternative, summary adjudication as Defendant Amazon has failed to meet its burden of proof in showing that the doctrines of judicial abstention and primary jurisdiction apply to the facts of this action.
- (2) *GRANTS* Amazon's request for judicial notice as to Exhibits 1-10 and 13 pursuant to Evidence Code section 452, subdivisions (b) and (c); *Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc.* (2005) 133 Cal.App.4th 26, 31-32; *Rodas v.*

*Spiegel* (2001) 87 Cal.App.4th 513, 518; and *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 929.

(3) *DENIES* Amazon's request for judicial notice as to Exhibits 11-12 because the Court does not take judicial notice of other superior court's decisions.